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Tentative Ruling

Re: **Gonzalez v. City of Clovis, et al.**
Superior Court Case No. 25CECG03033

Hearing Date: July 30, 2026 (Dept. 503)

Motion: Defendant California Highway Patrol's Demurrer to First Amended Complaint

Tentative Ruling:

To find moot in light of the dismissal of demurring defendant California Highway Patrol from the First Amended Complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 7/24/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Gonzalez v. Clovis Lakes Associates, LLC**
Superior Court Case No. 25CECG03664

Hearing Date: July 30, 2026 (Dept. 503)

Motion: by Defendant to Compel Arbitration

Tentative Ruling:

To grant. The parties are directed to provide to the court a joint list of persons nominated for appointment as arbitrator within 10 days. (Code Civ. Proc., § 1281.6.)

To stay the court action pending the arbitration of plaintiff's claims. (Code Civ. Proc., § 1281.4.)

Explanation:

With a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.). (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) There is a strong public policy in favor of arbitration agreements and "doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration." (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1278 (quoting *Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323).)

In the case at bench, there is no dispute as to whether the arbitration agreement exists or whether the dispute is covered by the agreement. Rather the parties disagree as to whether Plaintiff's initiation of arbitration with JAMS and the use of its strike-and-rank process for selection of an arbitrator complies with the terms of the arbitration agreement.

"The fundamental goal of contractual interpretation is to give effect to the mutual intention of the parties. (Civ. Code, § 1636.) If contractual language is clear and explicit, it governs. (Civ. Code § 11638.)" (*Bank of the West v. Superior Court* (1992) 2 Cal.4th 1254, 1264.) Any ambiguity in the language of the arbitration clause must be interpreted against the drafter. (Civ. Code § 1654; *Victoria v. Superior Court* (1985) 40 Cal.3d 734, 745, 747.)

The provision of the agreement at issue reads: "The Parties shall mutually choose a neutral arbitrator by an agreed upon method after arbitration is initiated. If the Parties

cannot agree upon a neutral arbitrator, the Superior Court in the county in which the Employer maintains its principal place of business shall appoint the arbitrator."

Plaintiff's request to arbitrate with JAMS was not in and of itself contrary to the language of the agreement, which does not specify a particular organization to conduct the arbitration. However, the agreement does specify the procedure for selecting a arbitrator in the event that parties are unable to mutually select a neutral arbitrator. (Sagaser Decl., Ex. A, ¶ 8.) Here, the declarations of counsel for both parties indicate the parties have been unable to agree upon the method to choose an arbitrator and unable to agree upon a neutral arbitrator. (Sagaser Decl., ¶¶ 6, 8; Nobles Decl., ¶¶ 6-7.) As such, the agreement requires the selection of the arbitrator be shifted to the court. Defendant interprets this to require the parties' compliance with Code of Civil Procedure section 1281.6, which is consistent with the agreement specifying that the arbitration shall be conducted according to the procedures of the California Arbitration Act.

Section 1281.6 provides in pertinent part,

When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.

(Code Civ. Proc., § 1281.6.)

Here, neither party has submitted persons they intend to nominate to serve as arbitrator.

In light of the parties' inability to mutually agree on an arbitrator, the court intends to grant defendant's motion to compel arbitration consistent with the terms of the arbitration agreement. The parties are directed to provide to the court a joint list of persons nominated for appointment as arbitrator within 10 days. Pursuant to Code of Civil Procedure section 1281.6, the court will select five persons from that list and provide notice to the parties of the nominees. Should the parties fail to select an arbitrator from the court's nominees within five days, the parties are directed to file with the court a request for the court to appoint the arbitrator from its list of nominees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/28/2026.
(Judge's initials) (Date)